

Akhand Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 April 2023 · Writ - C No. 10698 of 2023 · **Petition disposed; department to follow Supply Code procedure.**

HEADNOTE

Writ against a notice assessing unauthorized-use charges and a compounding fee was disposed of with a direction that respondent no. 4 proceed strictly in accordance with the procedure under the Electricity Supply Code, 2005. A personal hearing was already fixed for 3 May 2023. No clause was construed and the assessment was not decided.

FACTUAL SUMMARY

Akhand Pratap Singh challenged a notice of 1 September 2022 by which respondent no. 4 informed him of electricity charges assessed for unauthorized use and of a compounding fee, requiring objection and evidence within fifteen days or the assessment would stand finalized. He had already filed his objection on 14 February 2023. After two adjournments so that the Electricity Department could obtain instructions, its counsel stated that 3 May 2023 was fixed for his personal hearing and that the assessment would be finalized thereafter.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

unauthorized-use assessment left to Code procedure

HOLDING

The petition challenging the notice of assessed charges for unauthorized use and the compounding fee was disposed of with a direction that respondent no. 4 proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The Court identified no clause and did not decide the assessment. ¶ 3

FLAG The order names the Electricity Supply Code, 2005 but states no clause number.

PRINCIPLE TAGS

procedural-listing-no-construction The Court twice adjourned the writ for instructions and then disposed of it by directing respondent no. 4 to follow the Supply Code procedure already fixed for hearing. No clause was identified and no construction of the assessment or compounding procedure was laid down. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CHARGES ASSESSED FOR UNAUTHORIZED USE AND OF THE COMPOUNDING FEE

Left to respondent no. 4 to finalize after the personal hearing fixed for 3 May 2023, in accordance with the Supply Code procedure. ¶ 3